

LW6201E: THE GOVERNANCE AND REGULATION OF ARTIFICIAL INTELLIGENCE

Effective Term

Semester B 2025/26

Part I Course Overview

Course Title

The Governance and Regulation of Artificial Intelligence

Subject Code

LW - Law

Course Number

6201E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

Two weeks

Credit Units

1.5

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

The rapid development of AI has significantly disrupted our society from different aspects. This technological disruption generates complex ethical, legal, and governance challenges relating to privacy, fairness, accountability, transparency, and regulation. As the risks associated with AI become more apparent, global attention has shifted from a race to develop AI technologies to a race to regulate them. In this evolving landscape, states and regional bodies increasingly compete to set global standards.

The objective of this course is to guide students in understanding the diverse risks posed by artificial intelligence and to explore the legal and regulatory approaches available to address them. The lectures combine theoretical analysis with practical skills. Students will engage with the most recent legal and policy developments worldwide, particularly within the European Union (including the AI Act, the Digital Services Act, and the new Product Liability Directive), as well as in other key jurisdictions such as China, the United States, and emerging economies.

By integrating conceptual frameworks with real-world case studies, the course equips students with the tools to critically evaluate and navigate the interplay between technology, law, and policy. By the end of the course, students will be able to apply a range of legal instruments to analyse and address complex questions surrounding the regulation of AI.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Students have a good understanding of the social and legal challenges of AI technologies.		x	x	x
2	Students are able to apply legal principles and rules properly to address specific problems in a real-world situation.		x	x	x
3	Students are motivated to argue the potential loopholes of the current system and to propose reasonable corrective approaches with solid reasonings.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	During the lecture session, students are guided by the lecturer to have an overview of the legal issues as well as the legal framework to accommodate these issues.	1, 2, 3	
2	Class discussion	Examples and real cases will be presented in each lecture to help students to better understand the topics. Students are encouraged to join the class discussion and get feedback from the lecturer and their peers.	1, 2, 3	
3	Essay/open questions	Students are required to submit an essay of 2500 words by answering two open questions given by the lecturer.	1, 2, 3	

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Participation: Students are expected to attend lectures and actively engage in class discussion.	1, 2, 3	20	-	No
2	Essay: By the end of the course, the student shall submit a 2500-word essay.	1, 2, 3	80	-	No

Continuous Assessment (%)

100

Minimum Continuous Assessment Passing Requirement (%)

40

Additional Information for ATs

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain an overall mark of 40% in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain an overall mark of 50% in order to pass the course.

Assessment Rubrics (AR)

Assessment Task

Participation (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

The student will be assessed based on attendance, their contributions to in-class discussions, their preparation for ad-hoc questions, and their interaction with the instructor and other points of discussion raised by students.

Excellent

(A+, A, A-) The student consistently attends class and is fully prepared for each session. Actively and thoughtfully contributes to discussion, often offering insights that advance collective understanding.

Good

(B+, B, B-) The student attends class regularly and generally comes prepared. Contributes to discussion on most days with relevant comments or questions.

Fair

(C+, C, C-) Attendance is acceptable but inconsistent, and preparation varies across sessions. Participates occasionally in class discussion.

Marginal

(D) Attendance is irregular and the student is often unprepared. Rarely contributes to discussion.

Failure

(F) Attendance is irregular and the student is often unprepared. The student never contributes to discussion.

Assessment Task

Essay (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

The following factors will be assessed when evaluating the quality of the final essay:

- Original thinking
- Literature review
- Critical analysis
- Structure and formation
- English skills

Excellent

(A+, A, A-) The student demonstrates highly original, insightful, and independent thinking; Engages comprehensively with relevant academic literature; offers rigorous analysis; Essay is exceptionally well-organised, coherent, and logically structured; Writing is precise, and stylistically polished.

Good

(B+, B, B-) The student demonstrates some originality and independent thought; Shows good knowledge of relevant literature, though the scope may be modest; Some arguments may lack depth or complexity, but overall analysis is logical and well-supported; The essay is generally well-structured and coherent; Clear and readable writing with only minor language errors.

Fair

(C+, C, C-) The student relies heavily on existing ideas or course materials, and shows little independent reflection; the literature review is superficial or incomplete; The essay is difficult to follow, because of the weak structure and writing skills.

Marginal

(D) The student relies almost entirely on restating existing ideas without meaningful interpretation; the literature is incomplete and inaccurate; arguments are weak, underdeveloped, or poorly reasoned; The essay is difficult to follow, because of the weak structure and writing skills.

Failure

(F) The student shows no evidence of original thought or understanding; literature reviews contains fake references and inappropriate materials; argument is incoherent and factually incorrect; the structure is very weak and writing contains pervasive errors.

Assessment Task

Participation (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

The student will be assessed based on attendance, their contributions to in-class discussions, their preparation for ad-hoc questions, and their interaction with the instructor and other points of discussion raised by students.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Essay (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

The following factors will be assessed when evaluating the quality of the final essay:

- Original thinking
- Literature review
- Critical analysis
- Structure and formation
- English skills

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Artificial intelligence, product safety, standards, transparency, fairness, accountability, fundamental rights, consumer protection, EU AI Act, general purpose AI model, AI liability, online intermediaries, platform governance, global value chain.

Detailed Syllabus

Lecture 1: An Introduction to Law and AI

In this lecture, the following issues and topics will be covered:

- Introduction to the course: structure, requirement, timeline, assessment, etc.
- The theory of regulation
- The instruments of regulation
- The technical dimension of AI
- Ethical principles of AI development: transparency, fairness, accountability

Lecture 2: Product Safety and AI regulation

In this lecture, the following topics will be covered:

- An introduction to product safety regulation
- Legal requirements and technical specifications
- Standards
- Conformity assessment
- Post-market monitoring and market surveillance
- The link between product safety regulation and AI regulation

Lecture 3: The Regulation of AI: EU AI Act (I)

In this lecture, the following topics will be covered:

- The background of AI regulation
- The risk-based approach in the EU AI Act
- Prohibited AI applications in the EU AI Act

Lecture 4: The Regulation of AI: EU AI Act (II)

In this lecture, the following topics will be covered:

- High-risk AI applications in the EU AI Act: legal requirements and conformity assessment
- The regulation of General Purpose AI (GPAI)
- The governance framework of the EU AI Act

Lecture 5: AI Regulation, Innovation and Global Value Chain

In this lecture, the following topics will be covered:

- AI regulation, data protection and data sharing
- Sandbox
- AI literacy
- The Brussels Effect and global perspective
- Discussion: simplifying regulations for AI

Lecture 6: AI Liability

In this lecture, the following topics will be covered:

- Liability rules from a law and economics perspective
- Allocating liability along the AI value chain
- Product liability
- The liability for deployers

Lecture 7: AI Regulation and Online Platforms

In this lecture, the following topics will be covered:

- Intermediary services, hosting services, online platforms
- The power of online platforms, consumer protection and fundamental rights
- An overview of the Digital Services Act (DSA)
- Dark patterns, recommender systems and human autonomy
- The obligations for online platforms

Reading List

Compulsory Readings

Title	
1	Yeung, K. and Ranchordás, S., 2024. Introduction to law and regulation, Cambridge University Press (only Chapter 1, 2 and 4).
2	High-Level Expert Group on AI, Ethics guidelines for trustworthy AI, 2019, available here: https://digital-strategy.ec.europa.eu/en/library/ethics-guidelines-trustworthy-ai
3	European Commission, ‘The Blue Guide on the implementation of the product rules’ , 2022, available here: https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=OJ:C:2022:247:TOC
4	Ebers, M., 2024. Truly risk-based regulation of artificial intelligence how to implement the EU’ s AI Act. European Journal of Risk Regulation, pp.1-20.
5	Almada, M., & Petit, N. (2025). The EU AI Act: Between the rock of product safety and the hard place of fundamental rights. Common Market Law Review, 62(1).
6	Li, S. and Faure, M., 2024. The Revised Product Liability Directive: A Law and Economics Analysis. Journal of European Tort Law, 15(2), pp.140-171.
7	Ebers, M., & Vargas Penagos, E. (2025). Upstream, Downstream, and in Between: Navigating the GPAI Value Chain Under EU Law.
8	Turillazzi, A., Taddeo, M., Floridi, L. and Casolari, F., 2023. The digital services act: an analysis of its ethical, legal, and social implications. Law, Innovation and Technology, 15(1), pp.83-106.

Additional Readings

Title	
1	Mazzini, G., & Scalzo, S. (2023). The proposal for the artificial intelligence act: considerations around some key concepts. Camardi (a cura di), La via europea per l'Intelligenza artificiale.
2	Almada, M. and Radu, A., 2024. The Brussels Side-Effect: How the AI Act Can Reduce the Global Reach of EU Policy. German Law Journal, pp.1-18.
3	Bradford, A., 2020. The Brussels Effect: How the European Union Rules the World. Oxford University Press.
4	Husovec, M., 2024. Principles of the Digital Services Act. Oxford University Press.